

# Barrow-wight Estates: The Property Rights of the Dead

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Having once audited a dragon's balance sheet<sup>1</sup>, I considered myself finished with hazardous asset verification. The Barrow-downs, which I passed closer to than I ever intended, present a subtler case: not one large hoard held by one large creditor, but thousands of small estates held in perpetuity by the *previous owners* — who are dead, disagree, and bite.

## 1 Probate, interrupted

The barrows were tombs of the men of Cardolan, furnished in the usual way: the dead interred with their gold, swords, and circlets. Sound custom, terrible succession planning. When the Witch-king seeded the downs with wights, every estate acquired a sitting tenant with an infinite time horizon, no consumption needs, and an unmatched incentive to hold. The result is the purest illiquidity in recorded history: assets untouched for two thousand years, four hundred yards from a road.

In portfolio terms — and here I defer to Elrond's doctrine on counterparties who outlive you<sup>2</sup> — a wight is the limiting case: a counterparty that *is* the collateral.

## 2 The liquidity event

The dataset contains exactly one successful probate: Tom Bombadil's intervention, which broke a barrow open, evicted the tenant by song — a legal instrument unavailable to most practitioners — and, crucially, *distributed the assets*. Treasure was laid on the grass, free to all finders, and blades of Westernessee thereby re-entered circulation, one of which later performed a rather important piece of work at Pelennor<sup>3</sup>.

The economics writes itself: two millennia of zero yield, then a single liquidity event with a social return beyond any audit's power to state. Dead capital is not merely idle; it is *waiting*, and what it is waiting for is institutions capable of clearing title.

## 3 The auditor's note

Every economy holds barrow-wealth — assets locked by defunct claims, guarded by whatever we have instead of wights: lost deeds, dissolved firms, heirs unknown. The Downs merely make the problem visible and give it teeth. My recommendation is unchanged from the dragon case: value nothing you cannot exit, and be exceedingly polite to whatever is holding the ledger.

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<sup>1</sup>../dragon-hoards-monetary-policy/index.qmd

<sup>2</sup>../rings-as-reserve-assets/index.qmd

<sup>3</sup>../shieldmaidens-labour-market/index.qmd